

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MICHAEL MAIGLOW,

Petitioner,

-against-

Index No. _____

THE CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF EDUCATION, CARMEN
FARIÑA, JOYCE STALLINGS-HARTE, NEW
YORK CITY POLICE DEPARTMENT SERGEANT
WILLIAM REZEK (Tax No. 937370), NEW YORK
CITY POLICE DEPARTMENT OFFICER JOHNNY
MUNIZ (Tax No. 919459), NEW YORK CITY
POLICE DEPARTMENT OFFICER ESSIG, and
JOHN and/or JANE DOES 1, 2, 3, etc.,

**VERIFIED PETITION IN
SUPPORT OF APPLICATION
FOR AN ORDER DEEMING
CLAIMS PRESENTED IN
PETITIONER'S NOTICE OF
CLAIM AS TIMELY SERVED
NUNC PRO TUNC**

Respondent.
-----X

TO THE SUPREME COURT OF THE STATE OF NEW YORK:

1. This Verified Petition is made pursuant to C.P.L.R. § 403, General Municipal Law § 50-e(5), and Education Law § 3813(2-a) for an order deeming timely served nunc pro tunc the false arrest; unlawful seizure; false imprisonment; abuse of process; intentional, reckless, and negligent infliction of emotional distress; negligence and gross negligence; negligence in hiring, training, supervision, and discipline; and deprivation of privileges and immunities claims stemming from Petitioner's September 23, 2015 unlawful arrest and false imprisonment as described in Petitioner's Notice of Claim, which was served upon the City on March 30, 2016 and upon the Department of Education on March 31, 2016 (and attached here as Exhibit 1).

2. Petitioner is a retired New York City Department of Education (“DOE”) Social Studies teacher, who served over 17 years at IS 292 in East New York, Brooklyn. Petitioner’s Notice of Claim presents claims stemming from the false, retaliatory, and defamatory statements made by Respondent Joyce Stallings-Harte, Superintendent for New York City Community School District 19 and his unlawful arrest and false imprisonment by members of the New York City Police Department (“NYPD”), including Officer Essig, Officer Muniz, and Sergeant Rezek.

3. On September 17, 2014, Petitioner participated in a demonstration outside IS 292, protesting the termination of the school’s principal. Upon information and belief, on September 22, 2014, Superintendent Joyce Stallings-Harte filed a false report with the Office of Special Investigations (“OSI”) claiming, *inter alia*, that Petitioner abused DOE time and harassed Superintendent Stallings-Harte during the September 17th demonstration. On January 21, 2015, OSI found Superintendent Stallings-Harte’s claims to be unsubstantiated. Petitioner did not receive a copy of OSI’s report until September 9, 2015.

4. On September 10, 2015, Petitioner sent an email to Superintendent Stallings-Harte informing her that OSI found her complaints against him to be unsubstantiated. He also sought an apology from Superintendent Stallings-Harte for making the false allegations against him. Superintendent Stallings-Harte did not respond to Petitioner’s email. On September 17, 2015, Petitioner sent Superintendent Stallings-Harte a second email stating that he intended to file complaints with OSI and SCI about the false allegations she filed against him. On September 22, 2015, Superintendent Stallings-Harte filed a report with the New York City Police Department (“NYPD”) falsely stating that Petitioner sent her three threatening emails between January and September 2015, indicating that he knew where she and her family lived and

vacationed. Petitioner's email did not contain this information. Superintendent Stallings-Harte filed this complaint on DOE time and from her Community School District 19 office.

5. On September 22, 2015, at approximately 3:30 PM, Petitioner received a phone call from NYPD Officer Essig stating that Superintendent Stallings-Harte filed a report claiming that he threatened her via email. Officer Essig said that Petitioner would be arrested if he did not turn himself in. After consulting with his father, a retired NYPD officer, and his attorney, Petitioner agreed to turn himself in the following day. On the morning of September 23, 2015, Petitioner turned himself in at the 75th Precinct, where he was arrested on charges of Aggravated Harassment in the 2nd Degree. At approximately 5:30 PM, Petitioner was transferred to Central Booking. At approximately 1:00 AM, Petitioner was told, in sum and substance, "You are being released. You should never have been arrested" and released through Central Booking's back exit.

6. Following Petitioner's unlawful arrest and false imprisonment, he filed an SCI and OSI report against Superintendent Stallings-Harte and an Internal Affairs Bureau ("IAB") and Civilian Complaint Review Board ("CCRB") report against Superintendent Stallings-Harte and his investigating and arresting officers. Petitioner has never been interviewed by OSI or CCRB and was only recently interviewed by an investigator from IAB. He has not been informed about when the investigations are expected to conclude. Because Petitioner has no apparent recourse at this point for the false report Superintendent Stallings-Harte filed with OSI and the NYPD, he now intends to pursue legal action and seeks an order deeming his Notice of Claim, which he served on the City on March 30, 2016 and on the DOE on March 31, 2016, timely served nunc pro tunc and/or granting leave to serve a late notice of claim.

JURISDICTION AND VENUE

7. The City of New York and the New York City Department of Education have their principal offices in New York County. Thus, this Court has jurisdiction to grant an order deeming Petitioner's notice of claim timely served nunc pro tunc and/or granting leave to serve a late notice of claim, and venue is proper in this County. *See* Gen. Mun. § 50-e(7); Educ. Law § 3813(2-a); C.P.L.R. §§ 505(a), 506(a).

FACTUAL BACKGROUND

8. Petitioner is a 42-year-old retired New York City Department of Education ("DOE") teacher. He taught Social Studies at IS 292 in East New York for over 17 years. Prior to this incident, Petitioner had never been arrested. Petitioner suffers from several medical conditions, including heart valve disease, anxiety, depression, PTSD, and high cholesterol, and takes several medications for these conditions.

9. On September 17, 2014, Petitioner, along with IS 292 parents, students, and school staff members, participated in a demonstration, on the sidewalk in front of IS 292, protesting the firing of the school's principal.

10. During the demonstration, Petitioner was interviewed by News 12 Brooklyn and stated, "We are the only school in District 19 that is highly effective. Why would they get rid of our principal? It makes absolutely no sense." During the demonstration, Petitioner saw Community School District 19 Superintendent Joyce Stallings-Harte driving by the school in her car. Petitioner waived at Superintendent Stallings-Harte and then commented to a News 12 Brooklyn reporter, "Notice how she drove off."

11. Upon information and belief, on September 22, 2014, Superintendent Stallings-Harte filed a false report with the DOE's Office of Special Investigations ("OSI") claiming that

Petitioner abused DOE time and harassed her during the September 17th demonstration. On January 21, 2015, OSI found Superintendent Stallings-Harte's complaint against Petitioner unsubstantiated. Petitioner received a copy of OSI's findings on September 9, 2015.

12. On September 10, 2015, Plaintiff emailed Superintendent Stallings-Harte alerting her to OSI's decision. He also sought an apology from her for filing a false report. Superintendent Stallings-Harte did not respond to Petitioner's email. On September 17, 2015, Petitioner sent Superintendent Stallings-Harte a second email stating that because Petitioner had not apologized for filing a false report with OSI, Petitioner intended to file an OSI and SCI report against her, as well as alert the media about her conduct. Superintendent Stallings-Harte did not respond to this email.

13. On Thursday, September 17, 2015, Superintendent Stallings-Harte reported to New York City Police Department ("NYPD") that between January and September 2015, Petitioner sent her "three intimidating/threatening" emails that indicated Petitioner "knows where [Superintendent Stallings-Harte's] family live (sic), where they vacation and what car she drives." Superintendent Stallings-Harte made this report at 1:00 PM, inside 557 Pennsylvania Avenue, which is the location Community School District 19's district office, in her capacity as Superintendent. NYPD Officer Johnny Muniz (Tax No. 919459) and Sergeant William Rezek (Tax. No 937370) took Superintendent Stallings-Harte's report.

14. On September 22, 2015, Petitioner received a phone call from NYPD Officer Essig from the 75th Precinct. Officer Essig stated that a complaint had been filed against Petitioner for sending threatening emails to Superintendent Stallings-Harte. Officer Essig further stated, in sum and substance, "that the emails had a similar style" and that Petitioner was being charged with Aggravated Harassment in the 2nd Degree. Petitioner had only emailed

Superintendent Stallings-Harte on two occasions, September 10, 2015 and September 17, 2015, and neither of those emails contained threatening or intimidating statements, any reference to Superintendent Stallings-Harte's family, her home address, or where she vacations. Petitioner was told that if he did not turn himself in at the 75th Precinct, he would be arrested. Following the call with Officer Essig, Petitioner called his father, a retired NYPD Officer, and his attorney for advice. Later that afternoon, Petitioner's lawyer called Officer Essig and stated that Petitioner would turn himself in the following morning.

15. At approximately 8:45 AM on September 23, 2015, Petitioner arrived at the 75th Precinct. Petitioner was taken to the precinct's second floor, quickly searched, and placed in a small room with bars on the door. After sitting in the room for approximately 30 minutes, Office Essig came to the door and told Petitioner, in sum and substance, "I need to take a picture of you for identification purposes." Officer Essig used his cell phone to take a picture of Petitioner. Upon information and belief, Officer Essig sent a copy of this picture to Superintendent Stallings-Harte. Petitioner was then fingerprinted and his mugshot was taken. During this time, Petitioner learned from Office Essig that Superintendent Stallings-Harte never produced the three threatening emails that Petitioner allegedly sent. Petitioner was then taken to a holding cell, where he waited from approximately 9:30 AM to 5:30 PM. During this time, Petitioner was not offered any food.

16. At approximately 5:30 PM, Petitioner was removed from the holding cell, handcuffed, led out of the 75th Precinct to a van, and driven to Central Booking. While he was being processed at Central Booking, Petitioner was recognized by a former student, who was working as an EMT. The former student, who knew of Petitioner's medical conditions asked if he had been given his medication. Petitioner stated that he had not. After Petitioner was taken to

the holding cell, he began to experience panic attacks. At one point during, another person in the holding cell removed a condom from his anal cavity, removed a white powdery substance from the condom, and snorted the substance up his nose. At approximately 10:30 PM, an officer yelled to everyone in the holding cell, in sum and substance, "You guys aren't getting out tonight." Petitioner then asked that officer where he was going to sleep. The officer stated, in sum and substance, "on the fucking floor." At approximately 1:10 AM the following morning, Sgt. Armstrong came to the holding cell and yelled Petitioner's name. Petitioner approached Sgt. Armstrong and she told him, in sum and substance, "You are being released. You should have never been arrested." Petitioner was then led to Central Booking's back exit and told by an officer, in sum and substance, "it's like this never happened." Petitioner then hailed a cab, which took him to his Nassau County home and cost approximately \$190.

17. On March 21, 2016, Petitioner received a message from a former colleague that contained an attached photo showing the reception desk of Community School District 19. In that photo, the picture that Officer Essig took of Petitioner while he was detained in the small room at the 75th Precinct was on prominent display, with a post-it note attached to the photo containing the phrase "He's back at it" and an arrow pointing to Petitioner. Petitioner's name, race, age, and height is handwritten above his photo.

18. On or about September 26, 2015, Petitioner returned to Central Booking and requested his criminal file. Petitioner was told that his file was sealed. In early 2016, Petitioner emailed DOE Chancellor Carmen Fariña and told her about the false police report Superintendent Stallings-Harte had filed against him. Chancellor Fariña did not respond to Petitioner's email. Petitioner emailed Chancellor Fariña four additional times. She did not respond to any of those emails.

19. Petitioner filed a complaint with SCI, case number 2016-0908-R-OSI, 292K, IAB, and the Civilian Complaint Review Board (OLD 201600914.). Petitioner has been informed that the SCI report as been referred to the Chancellor's Office of Investigation.

20. In October 2015, Petitioner spoke with his Teacher's Union representative about the possibility of bringing an action against Superintendent Stallings-Harte for filing a false police report against him. The attorney advised Petitioner that he did not believe there was a claim. Petitioner spoke with two other attorneys over the next couple months, both of whom told him that he did not have a claim against Superintendent Stallings-Harte for filing a false police report against him.

21. Petitioner retained the undersigned counsel on March 30, 2016, to represent him in pursuing claims arising from the events described herein. Because some of these claims are state law claims, Petitioner makes this application.

22. To the extent certain of Petitioner's state law claims may be deemed to have arisen more than ninety days ago, he makes this application for an order deeming his Notice of Claim timely served nunc pro tunc and/or granting leave to serve a late notice of claim.

ARGUMENT

23. New York's General Municipal Law requires that an injured party asserting tort claims against a municipality must notify the city of his claims within ninety days of the date on which the claims arose. Gen. Mun. Law § 50-e(1). The purpose of this time limitation is to provide the public entity with an opportunity to investigate while witness memories are fresh and hard evidence is available. *O'Brien v. City of Syracuse*, 54 N.Y.2d 353, 358 (1981) ("The test of the notice's sufficiency is whether it includes information sufficient to enable the city to investigate the claim"); *In re Dubowy*, 305 A.D.2d 320, 321 (1st Dep't 2003) ("The purpose

underlying the notice of claim requirement embodied in [General Municipal Law § 50-e] is to protect the municipality from unfounded claims and to ensure that it has an adequate opportunity to explore the merits of the claim while information is still readily available.” (citations and quotations omitted)); *Heredia v. City of New York*, 141 A.D.2d 473, 474 (1st Dep’t 1988) (“The only legitimate purpose served by section 50-e is the opportunity for prompt investigation and preservation of evidence of the facts and circumstances of claims asserted against public corporations . . .”).

24. The Education Law requires that, for claims against school districts or any officer of a school district, a written verified claim be presented to the governing body of said district or school within three months after the accrual of such claim. Educ. Law § 3813(1). A notice of claim also appears to be required for claims founded upon tort against a school district or its officers, or “against any teacher or member of the supervisory or administrative staff or employee where the alleged tort was committed by such teacher or member or employee acting in the discharge of his duties within the scope of his employment and/or under the direction of the board of education, trustee or trustees, or governing body of the school.” *Id.* § 3813(2).¹

25. To avoid the unfairness of an absolute time bar obstructing otherwise meritorious claims, the Legislature permits claims to proceed in certain circumstances even when a notice of claim was not served within the prescribed time. *See* Gen. Mun. Law § 50-e(5); Educ. Law

¹ The Education Law appears to be unique in referring to a notice of claim for claims against individual officers, teachers or members of supervisory or administrative staff for torts committed while “acting in the discharge of his [or her] duties within the scope of his [or her] employment and/or under the direction of the board of education, trustee or trustees, or governing body of the school.” Educ. Law § 3813(1). In naming the individual Respondents in this Petition, Petitioner does not concede or allege that their torts were committed “in the discharge of duties within the scope of employment and/or under the direction of the board of education or governing body of the school.” *Id.* § 3813(2). We include the named individuals in the attached Notice of Claim in an excess of caution to preserve any and all claims.

§ 3813(2-a). The Court is empowered with discretion to grant a request to extend the time to serve a notice of claim beyond the specified period. *Id.*

26. General Municipal Law § 50-e(5) further instructs that “[t]he extension shall not exceed the time limited for the commencement of an action by the claimant against the public corporation.” Education Law § 3813(2-a) provides a similar limitation.

27. The time limitation for commencing a tort action against the City of New York is one year and ninety days. Gen. Mun. Law § 50-i(1)(c). The time limit for a suit against a school district or any officer of a school district is one year. Educ. Law § 3813(2-b); *see Kingsley Arms, Inc. v. Copake-Taconic Hills Cent. Sch. Dist.*, 9 A.D.3d 696, 698 (3d Dep’t 2004). Claims for “libel, slander, false words causing special damages” must be filed within one year, C.P.L.R. § 215(3), and claims for injury to property must be filed within three years, *id.* § 214(4); *see also Kartiganer Assocs. v. Town of New Windsor*, 108 A.D.2d 898, 899 (2d Dep’t 1985).

28. This Petition is filed just over sixth months from September 23, 2015, the earliest date any of Petitioner’s claims relating to his false arrest could have accrued. Thus, this Court has discretion to grant the requested extension as this Petition is filed well within the time limit for the commencement of an action on any of Petitioner’s claims. *See Kingsley Arms*, 9 A.D.3d at 698.

29. In determining whether to exercise its discretion to extend the time to serve a notice of claim, the Court must consider whether the City (in the case of the General Municipal law) or the “district or school or its attorney or its insurance carrier or other agent” (in the case of the Education Law) “acquired actual knowledge of the essential facts constituting the claim” within the specified period (*i.e.*, ninety days or three months) “or within a reasonable time thereafter.” Gen. Mun. Law § 50-e(5); Educ. Law § 3813(2-a).

30. The Legislature’s direction that the Court must consider the public entities’ actual knowledge codifies the policy behind the notice of claim statute: if the municipality or school district had actual knowledge of the incident within the specified period or within a reasonable time after the incident, then it was afforded the opportunity to investigate while the evidence was fresh and available, and to preclude a meritorious claim from proceeding in such a case would be unduly harsh. *See In re Dubowy*, 305 A.D.2d at 321 (“The statute . . . is not intended to operate as a device to defeat the rights of persons with legitimate claims” (citations and quotations omitted)).

31. This Court should exercise its discretion to grant Petitioner’s request for an order deeming his claim timely served nunc pro tunc and/or granting leave to serve a late notice of claim because Respondents all had actual knowledge of the essential facts constituting the claim well within the time specified for serving a notice of claim. Superintendent Stallings-Harte was responsible for making the false report about Petitioner to the NYPD on September 17, 2015. Presumably, the NYPD investigated Superintendent Stallings-Harte’s baseless claims prior to Petitioner’s September 23, 2015 unlawful arrest, yet still chose to falsely imprison him. *See Justiniano v. N.Y. City Hous. Auth. Police*, 191 A.D.2d 252, 252-53 (1st Dep’t 1993) (“Where, as here, the claim is for false imprisonment and malicious prosecution, such knowledge may be imputed to the municipality through the officers in its employ who made the arrest or initiated the prosecution.”).

32. Moreover, the administrative investigative agencies within the City and the DOE responsible for investigating SCI and OSI claims were notified of the events at issue and began investigating within 90 days of Petitioner’s unlawful arrest and imprisonment. Petitioner reported the events to OSI on September 28, 2015. Petitioner filed subsequent CCRB and IAB

complaints regarding his unlawful arrest and detention. Upon information and belief, OSI, IAB, and CCRB are continuing to investigate the case. Thus, “[t]he only legitimate purpose” of a notice of claim – “the opportunity for prompt investigation and preservation of evidence” – has already been served. *See Heredia*, 141 A.D.2d at 474.

33. Notice of a petitioner’s claim is imputed to the municipal agency when the actions of its officer initiated and provided the basis for the claim. *See Erichson v. Poughkeepsie Police Dep’t*, 66 A.D.3d 820, 821 (2d Dep’t 2009) (city police department acquired actual knowledge of assault claim as police department employees had engaged in conduct at issue); *Justiniano v. N.Y. City Hous. Auth. Police*, 191 A.D.2d 252, 252-53 (1st Dep’t 1993) (“Where, as here, the claim is for false imprisonment and malicious prosecution, such knowledge may be imputed to the municipality through the officers in its employ who made the arrest or initiated the prosecution.”); *Barua v. City of N.Y.*, Docket No. 103922/12, 2013 N.Y. Slip Op. 30781 (Sup. Ct. N.Y. Cnty. April 15, 2013); *Rosa v. N.Y. City Police Dep’t*, Docket No. 403179/11, 2012 N.Y. Slip Op. 31498 (Sup. Ct. N.Y. Cnty. June 1, 2012); *see also Gilbert v. Eden Cent. Sch. Dist.*, 206 A.D.2d 925, 926 (4th Dep’t 2003); *Reisse v. Cnty. of Nassau*, 141 A.D.2d 649, 651 (2d Dep’t 1988).

34. Here, Superintendent Stallings-Harte and members of the NYPD, including Officer Essig, were personally involved and their actions provide the basis for Petitioner’s claim. Moreover, because OSI falls under the Chancellor Fariña’s purview, upon information and belief, she has access to, if not actual oversight of, the progress of the investigation.

35. There is also reasonable justification for Petitioner’s delay in serving a notice of claim. Petitioner immediately filed a report with OSI, IAB, and CCRB. In October 2015, Petitioner consulted with his Union attorney and two private attorneys, all of whom told him that

he did not have a viable claim against Superintendent Stallings-Harte for filing a false police report or the NYPD and its officers for Petitioner's wrongful arrest and unlawful imprisonment.

36. At this point, however, it is unclear when (or if) the investigation will be concluded and Petitioner remains without recourse other than to assert his legal rights. This Petition is being filed within one day of Petitioner's retaining counsel to assert his claims.

37. Even in cases where a reasonable excuse is lacking, where "there was actual notice and an absence of prejudice, the absence of a reasonable excuse for failing to timely serve a notice of claim will not bar the granting of leave to serve a late notice of claim." *Nardi v. Cnty. of Nassau*, 18 A.D.3d 520, 521 (2d Dep't 2005); *see also Barua*, 2013 N.Y. Slip Op 30781 ("[A]bsence of an acceptable excuse for delay is not necessarily fatal to [a] petitioner's motion.' Rather, courts have ruled that, when deciding a petitioner's motion to file a late notice of claim, all factors listed in GML § 50-e(5), whether the respondent acquired actual knowledge of the essential facts constituting the claim within the 90 day statutory period must be considered." (quoting *Diallo v. City of N.Y.*, 224 A.D.2d 339, 340 (1st Dep't 1996)) (citing *Chattergoon v. N.Y. City Hous. Auth.*, 197 A.D.2d 397 (1st Dep't 1993)).

38. While the OSI, IAB, and CCRB investigations lulled Petitioner into thinking that this matter would be resolved, it has also allowed the City and the DOE to gather and preserve whatever evidence they may need to investigate Petitioner's claim.

39. Thus, the City and the DOE can hardly argue that they will be prejudiced by now receiving a formal notice of claim. Here, there was actual notice, which triggered an extensive investigation, so there is no prejudice. *See Rosa*, 2012 N.Y. Slip Op. 31498 ("[I]n light of [the] City's actual knowledge of petitioner's claims, there is no resulting prejudice.") (citing *Ansong v.*

City of N.Y., 308 A.D.2d 333, 334 (1st Dep't 2003); *Nunez v. City of N.Y.*, 307 A.D.2d 218, 220 (1st Dep't 2003)).

CONCLUSION

40. As the City had actual knowledge of the facts constituting the incident both within ninety days and within a reasonable period, there is a reasonable excuse for Petitioner's delay in filing the Notice of Claim until all of his claims had accrued, and the extension does not substantially prejudice the City, Petitioner respectfully requests that this Court issue an order deeming all of the claims in Petitioner's Notice of Claim served on the City on March 30, 2016 and on the DOE on March 31, 2016 as timely served nunc pro tunc, and granting such other and further relief as this Court deems just and proper.

41. No prior request for the relief sought herein has been made in this or any other court.

Dated: New York, New York
March 31, 2016

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26 Floor
New York, NY 10016
(212) 490-0400



Joshua S. Moskowitz
Keith Szczepanski

Attorneys for Petitioner

TO: Zachary Carter, Esq.
Corporation Counsel
City of New York
100 Church Street
New York, New York 10007

VERIFICATION

STATE OF NEW YORK)
 :SS.:
COUNTY OF NEW YORK)

KEITH SZCZEPANSKI, being duly sworn, states:

I am an attorney for the plaintiff in the within action and my office is located at 99 Park Avenue, PH/Suite 2600, New York, New York, 10016, which is within the County of New York. This verification is made by me because the plaintiff is not within the County of New York, which is the county where I have my office.

I have read the foregoing Verified Petition for an Order Deeming Claims in Petitioner's Notice of Claim Timely Served Nunc Pro Tunc and/or Granting Leave to Serve a Late Notice of Claim and know its contents. The factual allegations are made upon information and belief, and are based on my inquiries, the contents of our files, and discussions I have had with Petitioner. The Petition is true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true.



KEITH SZCZEPANSKI

Sworn to before me this
31st day of March 2016.



Notary Public

MARC A. CANNAN
NOTARY PUBLIC, State of New York
No. 02CA6265836
Qualified in Queens County
Commission Expires 07/16/2016